

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

Index No.:

-----X
LUIS CASTILLO,

Plaintiff,

Plaintiff designates
BRONX COUNTY
as place of Trial

THE CITY OF NEW YORK, THE NEW YORK CITY
POLICE DEPARTMENT, PO MICHAEL SAMBRATO,
Shield No. 6414, PO ROBERT RILEY, Shield No. 2025,
and PO ANDREW SOKOLOHORSKY, Shield No. 7254,
Officers of the 44th Pct, NYPD,

The basis of venue is the
location of occurrence

SUMMONS

-----X
Defendants.

Plaintiff resides at
1700 Grand Concourse,
Apt. 7C
Bronx, N.Y. 10457
County of Bronx

To the above-named Defendants

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance, on the Plaintiff's Attorney within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded herein.

Dated: Carmel, NY
August 19, 2020

JOHN P. GRILL
LAW OFFICES OF JOHN P. GRILL, PC
Attorneys for Plaintiff
229 Nimham Road
Carmel, New York 10512 (917) 601-5507

THE CITY OF NEW YORK, C/O JAMES JOHNSON, ESQ.
Attorney for Defendant THE CITY OF NEW YORK
100 Church St.
N.Y., N.Y. 10007

THE NEW YORK CITY POLICE DEPARTMENT C/O JAMES JOHNSON, ESQ.
Attorney for Defendant THE NYPD
100 Church St.
N.Y., N.Y. 10007

PO MICHAEL SAMBRATO, Shield No. 6414, PO ROBERT RILEY, Shield No. 2025,
and PO ANDREW SOKOLOHORSKY, Shield No. 7254, Officers of the 44th Pct, NYPD,
2 East 169 Street, Bronx, NY, 10452

The nature of this action is set forth in the Complaint. The relief sought is set forth in Complaint. Upon your failure to appear, judgment will be taken against you in an amount exceeding the jurisdiction of all lower courts, with interest from _____, 20__ and the costs of this action.

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

Index No.:

-----X
LUIS CASTILLO,

Plaintiff

vs

VERIFIED COMPLAINT

THE CITY OF NEW YORK, THE NEW YORK CITY
POLICE DEPARTMENT, PO MICHAEL SAMBRATO,
Shield No. 6414, PO ROBERT RILEY, Shield No. 2025,
and PO ANDREW SOKOLOHORSKY, Shield No. 7254,
Officers of the 44th Pct, NYPD,

Defendants.
-----X

PLEASE TAKE NOTICE that plaintiffs as and for their Verified Complaint, by their attorneys, respectfully allege as follows:

JURISDICTION AND VENUE

1. This action is brought pursuant to the common law of the state of New York and 42 U.S.C. Section 1983 and 1988 to redress the plaintiff's rights under the Constitution of the United States and common law of the United States and State of New York. Jurisdiction is based upon state law, and this court may address federal causes of action which might also be brought in federal court under 28 U.S.C. sections 1331 and 1343.

2. This court has jurisdiction over the plaintiff's federal and state law claims.

3. All of the actions, omissions, and events complained of took place within the County of Bronx, City and State of New York, and within the venue of this court.

4. The amount in controversy exclusive of interests and costs exceeds the sum of an amount in excess of the jurisdictional limits of all lower courts.

PARTIES

5. The plaintiff is a citizen of the United States and residents of the County of Bronx, State of New York and City of New York.

6. Defendant THE CITY OF NEW YORK (Hereinafter referred to as "THE CITY") is a municipal corporation duly organized and existing under and by virtue of the

laws of the State of New York, and pursuant to law is capable of being sued in this court.

7. At all times hereinafter mentioned the defendant NEW YORK CITY POLICE DEPARTMENT (Hereinafter referred to as "NYPD") was and still is a subdivision subject to the control of the municipal corporation THE CITY.

8. Upon information and belief, defendant NYPD is a division of THE CITY organized and existing under and by virtue of the laws of the City and State of New York.

9. Defendant THE CITY is responsible for the policies, practices and customs of NYPD.

10. Defendant THE CITY is responsible for the hiring training, supervision, retention, control and discipline of NYPD and its officers.

11. Defendant THE CITY is and was the employer of the personnel named herein as individual defendants.

12. Defendant THE CITY is also responsible for the operation, practices, and totality of conditions of the 44th precinct of NYPD.

13. Defendant NYPD is responsible for the policies, practices and customs of NYPD.

14. Defendant NYPD is responsible for the hiring training, supervision, retention, control and discipline of NYPD and its officers.

15. Defendant NYPD is and was the employer of the personnel named herein as individual defendants.

16. Defendant NYPD is also responsible for the operation, practices, and totality of conditions of the 44th Precinct of NYPD.

17. THE CITY acts, or fails to act through its policy-making officials including but not limited to its city council, mayor, police commissioner, and the chief of the 44th Precinct of NYPD; the acts and edicts of these policy making officials represent the also the policies, practices and customs of THE CITY.

18. THE CITY and NYPD have, jointly and severally, a constitutional and

statutory responsibility for the conditions at the 4th Precinct of the NYPD and are jointly and severally responsible for ensuring that the operations of said precinct are in conformity with constitutional requisites.

19. THE CITY and NYPD are and were jointly and severally responsible for ensuring that the police officers of the NYPD and more specifically those officers named as defendants herein, obeyed the regulations of the NYPD, THE CITY, the ordinances and laws of THE CITY, and the laws and the Constitution of the State of New York and the UNITED STATES.

20. Defendants, police officers of THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT, are and were police officers of the NYPD and employees of the NYPD and of THE CITY, and at all times herein were acting in such capacity as the agents, servants and employees of NYPD and THE CITY.

21. The defendant officers were at all times relevant to this complaint duly appointed and acting officers of the NYPD and of THE CITY, acting under color of law, to wit, under color of the statutes, ordinances, regulations, policies, customs and usages of the State of New York and THE CITY.

22. At all times relevant hereto and in all of their actions described herein, each defendant was acting under color of law, state authority, statute, custom or usage, and pursuant to their official authority. All of the actions were done intentionally.

FACTS

23. The subject arrest occurred on February 4, 2020, at about 7pm and the false imprisonment continued from that date to 02/14/20. The incident arose at 1700 Grand Concourse, Apt. 7C, Bronx, NY, and continued at St. Barnabas Hospital, Bronx, NY. Petitioner ingested an excessive amount of Vasotech medication and called 911 for an ambulance. The individual defendant officers arrived, would not allow plaintiff to be taken out by paramedics, forced plaintiff out of his apartment, beating him, giving him a black eye and internal derangement to the right shoulder and back, through violent

aggressive and physically dangerous restraint methods which were unnecessary as petitioner was compliant. Petitioner was rear cuffed in an excessively tight manner, and then brought to St. Barnabas Hospital to a psychiatric ward where he was forced to remain for 10 days. All of these unconstitutional arrests and detentions and actions were unconstitutional deprivations of plaintiff's liberty with use of excessive force. .

24. Plaintiff had not resisted or assaulted the defendants in any way, and such force as was used against him was unnecessary, unreasonable, and excessive.

25. At no time during the events described above was the plaintiff intoxicated, incapacitated or disorderly, or a threat to the safety of himself or others. He had committed no criminal offenses.

26. The defendants had no warrant for the arrest of the plaintiff, no probable cause for the arrest of the plaintiff, and no legal excuse or cause to seize the person of the plaintiff.

27. At all times during the events described above, the defendant police officers were engaged in a joint venture. The individual officers assisted each other in performing the various actions described, and lent their physical presence and support and the authority of their office to each other during said events.

28. All of the above acts were done both individually and in concert and intentionally and while acting under color of law, and in the scope of employment with THE CITY and the NYPD. It was a conspiracy to deprive the plaintiff of his civil rights guaranteed under the Constitution of the State of New York and the United States and the laws of New York State and the laws of the United States.

29. THE CITY and the NYPD had a policy of not training their employees with respect to the proper use of force and allowing persons such as plaintiff herein to be assaulted.

30. If THE CITY and NYPD had a policy of training their employees with respect to the proper use of force, same was not enforced.

31. On information and belief, the abuse to which the plaintiff was subjected was consistent with an institutionalized practice of THE CITY and the NYPD which was known to them and/or ratified by THE CITY and the NYPD, with the defendants at no time having taken any effective action to prevent their employees from continuing to engage in such misconduct and violation of constitutional rights and violations of law.

32. On information and belief, defendant THE CITY and the NYPD had prior notice of the vicious propensities of the individual defendants but took no steps to train them, correct their abuse of authority, or to discourage their unlawful use of authority or to terminate their employment. The failure to properly train defendants included the failure to instruct them in applicable sections of the New York State Penal Law, and proper use of force, and failed to properly train them with respect to the constitutional rights of citizens.

33. On information and belief THE CITY and the NYPD authorized, tolerated as institutional practices, and ratified the misconduct heretofore described.

34. As a direct and proximate result of the said acts of the defendants, and the abuse of authority detailed above, the plaintiff suffered the following injuries and damages:

- a. Violation of his constitutional rights under the Fourth and Fourteenth Amendments to the United States Constitution to be free from an unreasonable search and seizure to his person, false arrest, assault, battery, and false imprisonment and excessive force;
- b. Loss of his physical liberty;
- c. Physical pain and suffering and emotional trauma and suffering, requiring expenditure of money for treatment.

35. The actions of the defendant officers violated the following clearly established and well settled federal constitutional rights of plaintiff herein.

- a. Freedom from unreasonable search and seizure of his person.
- b. Freedom from the use of excessive, unreasonable and unjustified use of force against his person.

FEDERAL CAUSES OF ACTION
- COUNT I -
42 U.S.C. SECTION 1983
AGAINST INDIVIDUAL DEFENDANTS

36. Paragraphs 1 through 35 are incorporated herein by reference as though fully set forth.

37. Plaintiff claims damages for the injuries set forth above under 42 U.S.C. Section 1983 against the individual defendants of the 44th Precinct for violation of his constitutional rights under color of law, in an amount exceeding the jurisdiction of all lower courts.

COUNT II
42 U.S.C. SECTION 1983 AGAINST THE CITY AND THE NYPD

38. Paragraphs 1-37 are incorporated herein by reference as though fully set forth.

39. Prior to the date of plaintiff's arrest, THE CITY and the NYPD developed and maintained policies or customs exhibiting deliberate indifference to the constitutional rights of persons in THE CITY, which caused the violation of plaintiff's rights.

40. It was the policy and/or custom of THE CITY and the NYPD to inadequately and improperly investigate citizen complaints of police misconduct, and acts of misconduct were instead tolerated by THE CITY and the NYPD.

41. It was the custom and policy of THE CITY and the NYPD to inadequately supervise and train and retain and hire their police officers including the defendant officers, thereby failing adequately to discourage further constitutional violations on the part of their police officers. THE CITY and the NYPD did not require appropriate in-service training or re-training of officers who were known to have engaged in police misconduct.

42. As a result of the above described policies and customs, police officers of THE CITY and the NYPD, including the defendant officers believed that their

actions would not be properly monitored by supervisory officers and that misconduct would not be sanctioned or investigated, but would be tolerated.

43. The above described policies and customs demonstrated a deliberate indifference on the part of the policymakers of THE CITY and the NYPD to the constitutional rights of persons within THE CITY and were the cause of the violations of plaintiff's rights alleged herein.

44. Plaintiff claims damages for the injuries set forth above under 42 U.S.C. Section 1983 THE CITY and the NYPD for violation of his constitutional rights under color of law, in an amount exceeding the jurisdictional limits of all lower courts.

STATE CAUSES OF ACTION
PROCEDURAL FACTS

45. The allegations of paragraphs 1-44 are incorporated by reference herein as though fully set forth.

46. Prior hereto Plaintiff served and filed a notice of claim, and appeared for a 50-H hearing.

47. At least thirty (30) days have elapsed prior to the commencement of this action since the claim was presented to said defendant THE CITY OF NEW YORK for adjustment as aforesaid and it has refused to adjust or make payment thereof for thirty (30) days after said presentation.

48. This action was commenced within one year after the cause of action thereof occurred.

49. This action is timely commenced pursuant to General Municipal Law, subsection 50-I(1).

COUNT III. ASSAULT AND BATTERY

50. The allegations of Paragraphs 1-49 are incorporated by reference herein as though fully set forth.

51. The individual defendants were working within the scope of their

authority when they committed the actions described above generally and specifically those actions delineated in paragraph 23-35 above, and thereby assaulted and battered the plaintiffs.

52. The assault and battery aforesaid were without probable cause.

53. The individual defendants were working within the scope of their employment when they committed the actions described above generally and specifically those actions delineated in paragraphs 23 above, and thereby assaulted and battered the plaintiffs.

54. The individual defendants were careless and reckless and negligent in that they did not stop or restrain their fellow officers from assaulting the plaintiffs.

55. As a result of the aforesaid assault and battery, the plaintiff sustained serious and permanent personal injuries, along with humiliation, shame, indignity, damage to reputation and suffered emotional distress, in an amount exceeding the jurisdictional limits of all lower courts.

COUNT IV FALSE ARREST AND IMPRISONMENT

56. The allegations of Paragraphs 1-55 are incorporated by reference herein as though fully set forth.

57. The individual defendants were working within the scope of their authority when they committed the actions described above generally and specifically those actions delineated in paragraphs 23-35 above, and thereby confined the plaintiffs without privilege.

58. The confinement aforesaid was without probable cause or privilege.

59. The individual defendants were working within the scope of their employment when they committed the actions described above generally and specifically those actions delineated in paragraphs 23-35 above, and thereby confined the plaintiffs without privilege.

60. The individual defendants were careless and reckless and negligent

in that they did not stop or restrain their fellow officers from confining the plaintiffs.

61. As a result of the aforesaid confinement, the plaintiffs sustained serious and permanent personal injuries, along with humiliation, shame, indignity, damage to reputation and suffered emotional distress, in an amount exceeding the jurisdictional limits of all lower courts.

COUNT V FALSE ARREST AND IMPRISONMENT- TRANSFERRED INTENT

62. The allegations of Paragraphs 1-61 are incorporated by reference herein as though fully set forth.

63. The individual defendants were working within the scope of their authority when they committed the actions described above generally and specifically those actions delineated in paragraphs 23-35 above, and thereby confined the plaintiffs without privilege, and caused his continued confinement in a hospital. .

64. The confinement aforesaid was without probable cause or privilege.

65. The individual defendants were working within the scope of their employment when they committed the actions described above generally and specifically those actions delineated in paragraphs 23-35 above, and thereby confined the plaintiffs without privilege, and caused his continued confinement in a hospital.

66. The individual defendants were careless and reckless and negligent in that they did not stop or restrain their fellow officers from confining the plaintiffs.

67. As a result of the aforesaid confinement, the plaintiffs sustained serious and permanent personal injuries, along with humiliation, shame, indignity, damage to reputation and suffered emotional distress, in an amount exceeding the jurisdictional limits of all lower courts.

COUNT V. NEGLIGENCE RETENTION, TRAINING AND HIRING

68. The allegations of paragraphs 1-67 are incorporated by reference herein as though fully set forth.

69. THE CITY and the NYPD were responsible for hiring police officers,

including the defendant police officers, who were competent and capable of properly carrying out their job without causing injury to persons including the plaintiff herein.

70. The defendant THE CITY and the NYPD were negligent, reckless, and careless in the hiring of the defendant police officers.

71. The defendant THE CITY and the NYPD negligently failed to investigate and determine whether the defendant police officers were capable and competent.

72. THE CITY and the NYPD were responsible for retaining police officers, including the defendant police officers, who were competent and capable of properly carrying out their job without causing injury to persons including the plaintiff herein.

73. The defendant THE CITY and the NYPD were negligent, reckless, and careless in the retaining of the defendant police officers, in that they knew or should have known based on information available to them that the defendant police officers were not competent or capable, and/or exhibited vicious propensities.

74. The defendant THE CITY and the NYPD negligently failed to investigate and determine whether the defendant police officers were capable and competent.

75. THE CITY and the NYPD were responsible for training police officers, including the defendant police officers, to render them competent and capable of properly carrying out their job without causing injury to persons including the plaintiff herein.

76. The defendant THE CITY and the NYPD were negligent, reckless, and careless in the training of the defendant police officers, in that they failed to render such training would render the defendant police officers competent and capable, and/or ameliorate their vicious propensities.

77. The defendant THE CITY and the NYPD negligently failed to train the officers and render the defendant police officers capable and competent.

78. As a result of the aforesaid negligence, the plaintiff sustained serious

and permanent personal injuries, along with humiliation, shame, indignity, damage to reputation and suffered emotional distress, in an amount exceeding the jurisdictional limits of all lower courts.

COUNT VI. INTENTIONAL INFLICTION OF EMOTIONAL DISTRESS

79. The allegations of paragraphs 1-78 are incorporated by reference herein as though fully set forth.

80. The individual defendants were working within the scope of their employment when they committed the actions described above generally and specifically those actions delineated in paragraphs 23 above, those actions were intentionally and/or recklessly performed.

81. The defendants conduct jointly and severally was outrageous.

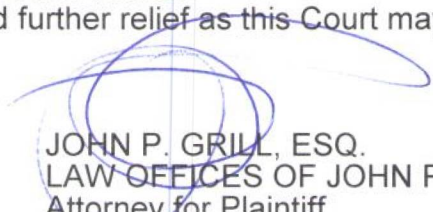
82. The defendants joint and several conduct caused the plaintiffs to suffer extreme emotional distress.

83. As a result of the aforesaid intentional infliction of severe emotional distress, the plaintiff sustained serious and permanent personal injuries, along with humiliation, shame, indignity, damage to reputation and suffered extreme emotional distress, in an amount exceeding the jurisdictional limits of all lower courts.

W H E R E F O R E, the plaintiff requests that this Court:

- a. Award compensatory damages to the plaintiff against the defendants, jointly and severally, in the amount exceeding the jurisdictional limits of all lower courts
- b. Award the costs of this action to the plaintiff.
- c. Award reasonable attorneys fees to the plaintiff under 42 U.S.C. Section 1988 and/or any other applicable laws.
- d. Award punitive damages in an amount exceeding the jurisdictional limits of all lower courts.
- e. Award such other and further relief as this Court may deem appropriate.

Dated: Carmel, New York
August 19, 2020


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